

Tenant Rights Quick Reference

Virginia landlord-tenant law in plain language. Know this before you get a notice.

NOTE: Virginia law unless noted. Always read your lease. Educational only — not legal advice. For eviction proceedings, contact a lawyer immediately.

1. Right to Habitable Housing (Va. Code § 55.1-1220)

- Landlord **MUST** maintain: working heat, hot/cold water, working plumbing, intact roof and windows, pest control.
- If landlord fails to repair: give written notice. Landlord has 14 days (24 hrs for emergencies).
- If no repair after notice: you may terminate the lease or pursue repair-and-deduct (§ 55.1-1234).
- Document everything: photos + dated certified mail notices.

2. Eviction Protections

Notice Required	Non-payment: 5-day pay-or-quit. Lease violation: 30-day cure notice. Month-to-month: 30 days.
Court Required	Landlord CANNOT remove you without a court order. Changing locks or shutting utilities is illegal self-help eviction (§ 55.1-1236).
Timeline	After court order: typically 10 days before writ of possession.
Legal Aid	Virginia Legal Aid: (800) 393-7910. Apply immediately upon receiving any court notice.

NOTE: Never ignore an eviction notice or miss a court date. A default judgment is very difficult to reverse.

3. Security Deposit Rights

- Maximum deposit: 2 months rent (§ 55.1-1226).
- Landlord must return within 45 days of move-out with itemized deductions.
- If wrongfully withheld: sue for deposit plus damages.
- Document unit condition at move-in AND move-out with timestamped photos.

4. Retaliation Protections (§ 55.1-1246)

- Landlord **CANNOT** raise rent, reduce services, or file for eviction because you filed a complaint.
- Retaliation is presumed if landlord acts within 90 days of your complaint.
- If retaliated against: document everything and contact legal aid immediately.

Key Deadlines

Situation	Deadline	Required Action
Repair failure	14 days after written notice	Landlord fixes or tenant may terminate
Emergency (heat/water)	24 hours	Landlord must act immediately

Situation	Deadline	Required Action
Security deposit return	45 days after move-out	Return + itemized deductions
Eviction notice (non-payment)	5 days to pay or vacate	Can still fight in court
Eviction court date	Varies	Attend — missing forfeits your case
TIP: Virginia Rent Relief Program may cover back rent. Apply at HousingForAll.com — even with an eviction notice pending.		